

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Winston Martindale	Team: Team # 5	CCRB Case #: 200405101	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 05/20/2004 11:30 PM	Location of Incident: Alibi - 244 DeKalb (Vanderbilt and DeKalb Avenue)	18 Mo. SOL 11/20/2005	Precinct: 88
Date/Time CV Reported Fri, 05/28/2004 3:06 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Fri, 05/28/2004 3:06 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Anthony Pagnotta	10817	920691	088 PCT
2. POM Anthony Barbee	22369	917270	088 PCT
3. POM Joseph Brunetti	23559	918633	088 PCT
4. POM Richard Carpenter	21716	923628	088 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Desmond Dempster	30296	920202	088 PCT
2. SGT Crystal Collins	03435	917065	NARCBMN

Officer(s)	Allegation	Investigator Recommendation
A . POM Anthony Pagnotta	Force: PO AnthonyPagnotta struck § 87(2)(b) with a blunt instrument.	A . Unfounded
B . POM Anthony Pagnotta	Force: PO Anthony Pagnotta used physical force against § 87(2)(b)	B . Exonerated
C . POM Anthony Barbee	Force: PO Anthony Barbee used physical force against § 87(2)(b)	C . Exonerated
D . POM Joseph Brunetti	Force: PO Joseph Brunetti used physical force against § 87(2)(b)	D . Unfounded
E . POM Richard Carpenter	Force: PO Carpenter used physical force against § 87(2)(b)	E . Exonerated

Synopsis

§ 87(2)(b) alleges that on May 20th, 2004 he was involved in a physical altercation with several patrons at The Alibi Bar located at 244 DeKalb Avenue in Brooklyn. He claims that he was beaten by an angry mob of civilians before police officers intervened and proceeded to use additional force against him. He claims that PO Anthony Pagnotta struck him with a blunt object and PO Joseph Brunetti, PO Anthony Barbee and other uniformed officers also used force against him.

§ 87(2)(g)

§ 87(2)(g) The investigator recommends that the force used by the officers is exonerated and the allegation regarding a blunt instrument is unfounded § 87(2)(g) § 87(2)(b) s allegation that PO Brunetti employed force against him is recommended closed as unfounded § 87(2)(g)

§ 87(2)(g)

Summary of Complaint

§ 87(2)(b) walked into the CCRB to file his complaint on May 28th, 2004.

§ 87(2)(b) s Statements (Enclosures 5 – 11)

§ 87(2)(b) is a § 87(2)(b)-old, black male who was interviewed at the CCRB on May 28th, 2004. § 87(2)(g)

On May 20th, 2004 § 87(2)(b) left his home at approximately 9:00 PM to walk his two dogs in Fort Greene park. On his way home, he stopped by a friend's hat store to have an item repaired. At approximately 10:30 PM, § 87(2)(b) decided to head home. As he walked past the Alibi bar at 244 DeKalb Avenue, he decided to stop for a beer. § 87(2)(b) tied his two dogs to a rail outside the bar and walked inside. He claimed that less than 30 seconds had elapsed before he looked outside and observed a tall black male kicking one of his dogs. § 87(2)(b) immediately left the establishment and confronted the male. In his written statement, he explained that they exchanged "a few choice words [that were] heated, but no threats [were made]." In his CCRB interview he explained that he merely unhitched his dogs and asked the male to refrain from kicking his dogs. He also informed him that the animals were well trained and not vicious.

In one version of his story (the written statement), § 87(2)(b) claims that a group of patrons exited the bar and surrounded him. It appeared that they were trying to diffuse the situation between the two men. Suddenly a white male exited the bar and approached § 87(2)(b) Based on comments made by the crowd, § 87(2)(b) believed this male to be the owner of the establishment. As the male approached him, § 87(2)(b) "held up a peace sign with his right hand" and said, "When this is all over, you'll owe me a beer with foam on it." In an unprovoked attack the male punched him in the lower lip causing him to fall to the ground unconscious. When he came to a few seconds later, § 87(2)(b) observed a "sea of angry faces" that began to beat him.

§ 87(2)(b) started kicking to free himself and eventually regained his footing. As he stood up, he observed the bar owner on a cellular phone. § 87(2)(b) removed his dogs' leashes from the hands of an unidentified individual and started backing away from the crowd. As he backed away, a hand came from behind and struck him in the temple over his left eye. He turned around and observed three white male police officers in plainclothes. Without identifying themselves, they immediately jumped on him and began "clubbing" him repeatedly. He stated, "I went down again, blacking out. [I] awoke a second or two later, face down in the street [with] a hand behind my head forcing

and banging my head to the street. I could feel blows on my back, arms and face.” **(Allegations A to E)** § 87(2)(b) also wrote, “I had only one aim in mind, get back the dogs again and run.” He was eventually handcuffed and thrown into a police car. When he tried to explain what happened to the officers, they responded with, “Shut the fuck up!” and threatened him in an unspecified manner (These allegations were not plead because § 87(2)(b) never mentioned them again in any of his interviews). § 87(2)(b) was eventually taken to a hospital after he was “passing in and out of consciousness.”

In another version of the story (his CCRB interview), an angry crowd spilled out of the bar and proceeded to yell and scream at him. Some pushing ensued between him and other patrons but no punches were thrown and no one was injured. The bar owner approached § 87(2)(b) who immediately inquired if the black male was an employee of the establishment. The bar owner ignored his question and continued to walk towards him. § 87(2)(b) held up a peace sign with one hand in order to show that he was not a threat. The bar owner immediately struck him with his right hand causing him to fall to the ground. The crowd immediately pounced and began to punch and kick § 87(2)(b) as he lay on the sidewalk. He immediately got back on his feet, retrieved his hat and started to look around for his wallet. As he stood there, an officer he identified as PO Pagnotta struck him in the back of his head with a nightstick. **(Allegation A)** two additional plainclothed officers grabbed him by the neck and threw him to the ground. § 87(2)(b) claims that he did not know that these males were police officers so he “resisted the blows and refused to place his hands behind his back.” The officers kicked and struck him in the arms and head **(Allegations B, C, D and E)**. He was handcuffed and transported to the Precinct where he was informed that he walked into a bar, announced that he had a gun and punched the owner. He then allegedly walked outside and punched several other individuals. When he was searched by the police officers, they also found marijuana in his possession. § 87(2)(b) was later transported to a hospital to be treated for his injuries. He claims that the injuries to his body resulted from the beating by the civilians on the scene. His head injuries were caused by the police officers.

§ 87(2)(a) Gen.Mun. §50-H(3)

On May 25th, 2005 § 87(2)(b) was shown single photographs of all the officers interviewed in this case. He positively identified PO Pagnotta, PO Barbee and PO Brunetti as the officers who used force against him on the night of the incident. He did not identify PO Carpenter as a subject officer and stated that PO Dempster was the desk sergeant who assisted him and his wife the following day.

Results of Investigation

§ 87(2)(b) **s Statement (Enclosures 12 to 14).**

§ 87(2)(b) is a § 87(2)(b) -old black female who claims to be § 87(2)(b) s wife. She was not present for nor did she witness any of the allegations committed against § 87(2)(b). She received a call from the 88th Precinct informing her that her husband was under arrest. The unidentified officer also instructed § 87(2)(b) to report to the location in order to pick up the two dogs. When she arrived at the scene, most of the customers were standing outside. § 87(2)(b) observed an officer pick up § 87(2)(b) s wallet that was lying in the middle of the street. The male returned the

wallet to her and informed her that her husband had walked into the bar, announced that he had a gun and knocked out the bartender. § 87(2)(b) took the dogs and left the scene of the altercation.

§ 87(2)(b)'s Statement (Enclosure 15)

§ 87(2)(b) is a § 87(2)(b)-old, white male § 87(2)(b). He was initially reluctant to provide a statement, however he finally permitted the investigator to ask a few questions.

§ 87(2)(b) remembered that the incident took place in May of 2004 on a Thursday night. At approximately 11:00 PM he noticed a commotion taking place outside. Upon investigation, § 87(2)(b) observed § 87(2)(b) pushing and shoving the customers in an unprovoked manner. They were becoming increasingly irate and at least two individuals informed him that § 87(2)(b) claimed to be in possession of a gun. § 87(2)(b) immediately called 911 and as they were waiting for the police to arrive, § 87(2)(b) attempted to re-enter the bar stating "I'm going to go inside and get me a drink." § 87(2)(b) prevented him from doing so and § 87(2)(b) stated in an authoritative voice, "then you go get me a drink!" § 87(2)(b) refused again and § 87(2)(b) stated, "Fire burns, things burn!" A few minutes later, § 87(2)(b) walked over to § 87(2)(b) and punched him in the eye. § 87(2)(b) grabbed § 87(2)(b) and the two tripped over the dogs' leashes. Since his face was bleeding, § 87(2)(b) instructed some of the customers to hold § 87(2)(b) down until the police arrived. They were unable to because he was able to break free of their grasp.

Once the officers arrived, § 87(2)(b) informed them that § 87(2)(b) attacked him and furthermore stated that he was in possession of a firearm and threatened to burn down the bar. As the officers started to place § 87(2)(b) under arrest, he began fighting with them. The struggle lasted for more than five minutes and became increasingly violent. § 87(2)(b) fought all the way to the police car and as he was getting into the vehicle, he struck his upper arm and shoulder into the vehicle. Two plainclothed officers were the first to arrive. They were unable to restrain § 87(2)(b) because he was much stronger than the two of them. Uniformed officers arrived a few minutes later and it was with their assistance that he was eventually handcuffed. § 87(2)(b) did not witness the crowd beating § 87(2)(b) and he also denied that he was ever struck with a nightstick.

§ 87(2)(b)'s Statement (Enclosure 16)

§ 87(2)(b) refused to be formally interviewed by the CCRB investigator. He stated off the record that § 87(2)(b) walked into the bar and ordered a pint of Guinness of which he only consumed half. He was already intoxicated and walked around the bar bumping into the other customers.

§ 87(2)(b)'s Statement (Enclosure 17)

The radio run in this case identified § 87(2)(b) as one of the 911 callers in this case. She had a very poor recollection of the incident and only recalled calling 911 after observing two males in a shoving match outside the bar. She reported the incident to the 911 operator and the owner of the bar eventually exited the building and he too called 911. When the police arrived, § 87(2)(b) left with her friends whom she refused to identify for the investigation. She did not witness any force used by police officers, or anyone else on the scene.

PO Anthony Pagnotta (Enc. 19) and PO Anthony Barbee (Enc. 20)

PO Pagnotta was the arresting officer in this case. In the arrest report (Enc. 27) he documented that § 87(2)(b) punched the complaining victim in the face causing a laceration to his left eye and pain to his nose. He also documented that § 87(2)(b) claimed to be in possession of a firearm and resisted arrested causing injury to the arresting officer. A search incident to lawful arrest produced a quantity of marijuana for which he was also charged. PO Pagnotta documented in the report that § 87(2)(b) was intoxicated at the time of arrest and that physical force was used to take him into custody.

PO Pagnotta and PO Barbee of the 88th Precinct anticrime unit were both in plain clothes at the time of this incident. The officers received a radio transmission regarding a dispute at 242 DeKalb Avenue. Upon

responding to the scene the officers noticed a large crowd standing in front of a bar. As they approached, the officers observed § 87(2)(b) who was bleeding from the forehead pointed and § 87(2)(b) who was holding two dogs and bleeding from the mouth. § 87(2)(b) accused § 87(2)(b) § 87(2)(b) of punching him in the face. Simultaneously, members of the crowd pointed to § 87(2)(b) and stated, "He says he's got a gun. He says he going to shoot us!" Some members of the crowd were simply observing the altercation while others appeared to be separating the two males. As PO Pagnotta approached § 87(2)(b) he lunged at, and attempted to punch § 87(2)(b) again. PO Barbee stepped in between the two males and attempted the grab § 87(2)(b) § 87(2)(b) PO Pagnotta grabbed his other hand and a struggle ensued. § 87(2)(b) grabbed PO Barbee's arm and twisted it as PO Barbee attempted to remove the leashes from his hand. Eventually, PO Barbee broke free and removed the leashes as the dogs were attempting the bite the officer's ankles. PO Pagnotta continued to struggle with § 87(2)(b) and attempted to take him to the ground. Some uniformed officers arrived and proceeded to assist PO Pagnotta in handcuffing § 87(2)(b) § 87(2)(b) was much bigger than PO Pagnotta and appeared to be stronger too. He resisted so violently that several officers were required to take him into custody. Both officers maintained that § 87(2)(b) was bleeding from the mouth when they approached the scene. They denied kicking or punching him and stated that they were simply trying to wrestle him to the ground. PO Pagnotta and PO Barbee could not account for the § 87(2)(b)'s injuries except for the cut to his lower lip. The officers denied striking him with any objects and denied that they even carry nightsticks. Both officers testified that § 87(2)(b) was extremely intoxicated at the time of his arrest. PO Pagnotta and PO Barbee could not recall the identities of the uniformed officers who assisted with the arrest. PO Pagnotta sustained a laceration to his hand as a result of § 87(2)(b)'s resistance.

PO Joseph Brunetti (Enc. 21) and Sgt. Crystal Collins (Enc. 22)

PO Brunetti and Sgt. Collins of the 88th Precinct anticrime unit were at the station house when the radio transmission was broadcast. PO Pagnotta and PO Barbee left and Sgt. Collins and PO Brunetti stayed behind. A short while later, Sgt. Collins was requested on the scene to verify an arrest made by PO Pagnotta and PO Barbee. On the scene, the officers advised Sgt. Collins that § 87(2)(b) had punched the owner of a bar in the face causing injury. § 87(2)(b) was extremely intoxicated when she observed him and he proceeded to threaten and curse at the police officers. Sgt. Collins recalled that he was standing handcuffed outside the vehicle, however he was still restrained by officers due to his continued resistance. PO Brunetti had no physical contact with § 87(2)(b) because he was already handcuffed and in custody when they arrived. Sgt. Collins and PO Brunetti did not recall who the other responding officers were. Later that evening, PO Brunetti was one of the officers who transported § 87(2)(b) to the hospital. He recalled that § 87(2)(b) remained uncooperative with the doctor and hospital staff, to the point that they did not want to assist him. Sgt. Collins recalled observing an abrasion on his forehead and lip, which she assumed he sustained from the struggle.

PO Desmond Dempster (Enc. 18) and PO Richard Carpenter (Enc. 23)

PO Dempster of the 88th Precinct had no independent recollection of this incident. He documented in his memo book that he responded to the location and transported one male complainant to the station house. PO Carpenter on the other hand, recalled responding to a bar where a group of plainclothed officers were attempting to place a black male under arrest. PO Carpenter did not recall who the other officers were but he was able to state that the male under arrest was extremely intoxicated. PO Carpenter attempted to assist in handcuffing the male who eventually fell to the ground as a result of his inebriation. PO Carpenter did not recall any injuries and denied that he or any other officer punched or kicked the male. He further denied seeing him struck with a nightstick or other blunt object.

Medical Records (Enc. 24)

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(a) PHL § 18(6)

Medical Treatment of Prisoner Report (Enc. 25)

The Medical Treatment of Prisoner Report documented that § 87(2)(b) was involved in an altercation with the complaining victim § 87(2)(b). The report also indicated that he refused medical aid in the field and at the command. PO Barbee is listed as the escorting officer and the report was signed by Sgt. Collins.

Communications Record (Enc. 26)

The communications report indicated that at 11:15 PM a 911 call was made reporting a dispute involving several adults. A female caller later identified as § 87(2)(b) placed the call. 88th Precinct sector C, identified as PO Dempster and PO Carpenter responded to the scene.

Police Department Records (Enc.'s 27-31)

§ 87(2)(a) 160.50

§ 87(2)(b) The report also documented that he was intoxicated at the time of arrest. Physical force was used to restrain, control and remove § 87(2)(b) at the time of arrest. Vouchered as arrest evidence (Enc. 29) were several photographs, two ziplock bags of marijuana and one marijuana cigarette. The command log (Enc. 30) indicates that § 87(2)(b) sustained an injury to his face and was intoxicated.

Civil Action (Enc. 32-33)

§ 87(2)(b) and his wife § 87(2)(b) filed a notice of claim against the City of New York on § 87(2)(b). The claim alleges that § 87(2)(b) suffered "physical injury, mental anguish and fear of being assaulted, shot and killed" as a result of the officers' "negligent, reckless and careless actions." The claim requested financial compensation in the amount of five million dollars.

Police Officers' CCRB Histories (Enc. 3)

The subject officers involved in this investigation have no substantiated CCRB allegations on their complaint histories.

§ 87(2)(b)'s Criminal Convictions (Enc. 27-28)

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Conclusions and Recommendations

Officer Identification

PO Pagnotta was identified as the arresting officer in this case via the arrest related documentation. Additionally, § 87(2)(b) identified PO Pagnotta, PO Barbee and PO Brunetti as the three-plainclothed officers who employed the use of force in order to effect his arrest. This is consistent with his CCRB statement where he claims three plainclothed officers set upon him at the scene of the incident. PO

Carpenter is also listed as a subject because of his admitted involvement in the arrest. § 87(2)(g)

§ 87(2)(b) s Credibility

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g), § 87(2)(a) Gen.Mun. §50-H(3)

Police Officers' Credibility

§ 87(2)(g)

Allegation A: PO Anthony Pagnotta struck § 87(2)(b) with a blunt object.

§ 87(2)(b) alleges that PO Pagnotta was the officer who struck him in the back of the head with either a gun butt or a nightstick. He did not observe what he was allegedly struck with but asserted that PO Pagnotta was the officer responsible for this action. PO Pagnotta denied the allegation and stated that he was not carrying a nightstick at the time of the incident. § 87(2)(g)

No injuries were documented to the rear of his head and § 87(2)(b) failed to complain of any pain or injury to the location during either of his hospital visits. § 87(2)(g)

it is recommended that this allegation be unfounded.

Allegation B: PO Anthony Pagnotta used physical force against § 87(2)(b)

Allegation C: PO Anthony Barbee used physical force against § 87(2)(b)

Allegation E: PO Richard Carpenter used physical force against § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g)

██████████ it is recommended that these allegations be closed as exonerated.

Allegation D: PO Joseph Brunetti used physical force against § 87(2)(b)

PO Brunetti denied being present on the scene during § 87(2)(b)'s apprehension. He was at the stationhouse with Sgt. Collins who verified his story. In addition, § 87(2)(b) testified that two plainclothed officers and not three initially approached § 87(2)(b). PO Brunetti was one of the officers who escorted § 87(2)(b) to the hospital along with PO Barbee. § 87(2)(g)

PO Brunetti's memo book places him at 81 North Portland Road at 11:45 PM, the approximate time that § 87(2)(b) was being placed under arrest. § 87(2)(b)

it is recommended that this allegation be unfounded.

Date: